

**DEPARTMENT THREE
JUDGE STEPHEN GIZZI
707-207-7303
TENTATIVE RULINGS SCHEDULED FOR
FRIDAY, JULY 10, 2026**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30.

**ACCELERATED INVENTORY MANAGEMENT, LLC v. MARLENA MCINTIRE
Case No. CL25-01012**

Defendant's Motion for Sanctions

TENTATIVE RULING

Defendant MARLENA MCINTIRE moves for monetary and terminating sanctions against Plaintiff ACCELERATED INVENTORY MANAGEMENT, LLC.

The court has not received opposition to the motion.

Code of Civil Procedure section 2023.030 permits a court to impose various sanctions on a party that misuses the discovery process. Failing to respond to an authorized method of discovery is a misuse of the discovery process, as is disobeying a court order to provide discovery. (Code Civ. Proc., § 2023.010, subds. (d), (g).) When selecting a sanction the trial court should consider both the conduct being sanctioned and its effect on the party seeking discovery and should attempt to tailor the sanction to the harm caused by the withheld discovery. (*Doppes v. Bentley Motors, Inc.* (2009) 174 Cal.App.4th 967, 992.) Sanctions should not exceed that which is required to protect the interests of the party entitled to but denied discovery. (*Ibid.*) However, if a lesser sanction fails to curb misuse, a greater sanction is warranted: continuing misuses of the discovery process warrant incrementally harsher sanctions. (*Ibid.*) Where a violation is willful and preceded by a history of abuse and the evidence shows that less severe

sanctions would not produce compliance with the discovery rules, the trial court is justified in imposing severe, including terminating, sanctions. (*Ibid.*)

Plaintiff failed to obey this court's December 15, 2025 order to respond to Defendant's form interrogatories and requests for production, set one within ten days. Plaintiff failed to pay the ordered \$2,400 in monetary sanctions. Further, Plaintiff has a history of failing to appear at case management conferences or file case management conference statements, conduct for which Plaintiff's counsel has previously been sanctioned. The court finds that terminating sanctions are warranted for Plaintiff's abuse of the discovery process, failure to obey a court order, and failure to attend hearings or file required documents in this case. (See *Moofly Productions, LLC v. Favila* (2020) 46 Cal.App.5th 1, 11 [requirements for terminating sanctions met where party failed to respond to court order and failed to attend hearings].)

Defendant's unopposed motion is granted. This case is ordered dismissed without prejudice.

SPIRO PISTIOLAS v. ERIK GIOVANNI FRAIRE and CINDY HEREDIA
Case No. CL25-04630

PISTIOLAS's Demurrer to FRAIRE and HEREDIA's First Amended Cross-Complaint

TENTATIVE RULING

Plaintiff and Cross-Defendant SPIRO PISTIOLAS demurs to Defendants and Cross-Complainants Plaintiffs ERIK GIOVANNI FRAIRE and CINDY HEREDIA's first amended cross-complaint alleging causes of action for (1) breach of contract, (2) breach of the implied warranty of habitability, (3) fraud, (4) negligence, (5) intentional infliction of emotional distress, (6) violation of Civil Code section 1942.2, (7) violation of Civil Code section 789.3, and (8) common counts.

The court observes that Cross-Complainants filed a second amended cross-complaint on July 2, 2026. An amended pleading supersedes the original pleading and so moots a challenge to the now-defunct original pleading. (*Sylmar Air Conditioning v. Pueblo Contracting Services, Inc.* (2004) 122 Cal.App.4th 1049, 1054.) However, a party may only amend its pleading without leave of court or stipulation of the parties after a demurrer is filed if the amended pleading is filed within the time for opposition to the demurrer. (Code Civ. Proc., § 472.) Cross-Defendant served his demurrer on January 22, 2026, with hearing noticed for July 10, 2026. The deadline for filing opposition to Cross-Defendant's demurrer was June 26, 2026; indeed, Cross-Complainants submitted opposition to the demurrer before that deadline. (Code Civ. Proc., § 1005, subd. (b) [opposition papers due 9 court days before hearing on demurrer].) Cross-Complainants did not submit a stipulation of the parties or obtain leave of court to file the second amended cross-complaint. Cross-Complainants' submitted second amended cross-complaint does not supersede the original complaint or moot the